

2:00 PM

LINE 7

25-CLJ-06965

TD BANK USA, N.A. VS. ALVARO J ESPINOSA

TD BANK USA, N.A.
ALVARO J ESPINOSA

DONALD SHERRILL
CHRISTINA TOROYAN

MOTION TO BE RELIEVED AS COUNSEL FOR DEFENDANT ALVARO ESPINOSA

TENTATIVE RULING:

The court rules on the motion of Paul Eum and Deborah Lee to be relieved as counsel for defendant Alvaro Espinosa as follows:

If defense counsel demonstrates service on defendant and plaintiff's counsel of the proper hearing date, then the motion is GRANTED. The order does not become effective until notice of entry of order on the defendant.

In the notice of motion, plaintiff put the date of May 5, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed April 9, 2026 of the motion showing service of the motion on defendant and plaintiff's counsel on April 9, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on April 9, 2026 proper notice of the July 14, 2026 hearing. On April 29, 2026, defense counsel filed a proof of service showing proof of service by mail on defendant. However, it is unclear whether defendant was served with notice of the hearing date of May 5 or July 14, 2026. There is no amended proof of service on plaintiff's counsel of an amended notice with the court date. Therefore, it is unclear if defendant and plaintiff's counsel receive proper notice of the hearing date. (Cal. Rules of Court, rule 3.1110(b)(1).) Without proper notice on defendant and plaintiff's counsel, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Accordingly, if defense counsel can show proper service or a waiver of service, counsel shall properly contest the tentative ruling, and by 11:00 a.m. on July 14, 2026, file a declaration showing that both defendant and plaintiff's counsel received proper notice of the hearing or showing a waiver of notice, and then at the hearing the court will grant the motion. If these conditions are not met, court must deny the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

If the motion is granted, the mandatory Judicial Council form must be changed to reflect the new case management conference date of January 6, 2027 at 10:00 a.m.

2:00 PM

LINE 8

25-CLJ-07707

TD BANK USA, N.A. VS. JANNETTE MADARANG

TD BANK USA, N.A.
JANNETTE MADARANG

DANIEL ODITT
PRO SE

MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff's unopposed motion for judgment on the pleadings is denied without prejudice.

The notice of motion, plaintiff put the date of June 30, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026, and the location was corrected to show that the hearing would be in Department 4 rather than in Department 18 as plaintiff noticed the motion. The court file shows a proof of service filed May 20, 2026 of the motion showing service of the motion on defendant on May 20, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 20, 2026 proper notice of the July 14, 2026 hearing and proper department to defendant. There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date or location. (Cal. Rules of Court, rule 3.1110(b)(1).) Accordingly, defendant does not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

The court strikes the prematurely filed memorandum of costs. The memorandum of costs is filed after judgment is entered.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
